9.26.25

Ms. Danica S. Irvine
Alternate Designated Agency Ethics Official
Office of the General Counsel
Department of Defense
Washington, DC 20310

Dear Ms. Irvine:

The purpose of this letter is to describe the steps that I will take to avoid any actual or apparent conflict of interest in the event that I am confirmed for the position of Assistant Secretary of the Navy for Energy, Installations, and Environment. It is my responsibility to understand and comply with commitments outlined in this agreement.

SECTION 1 – GENERAL COMMITMENTS

As required by the criminal conflicts of interest law at 18 U.S.C. § 208(a), I will not participate personally and substantially in any particular matter in which I know that I have a financial interest directly and predictably affected by the matter, or in which I know that a person whose interests are imputed to me has a financial interest directly and predictably affected by the particular matter, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). I understand that the interests of the following persons are imputed to me:

- Any spouse or minor child of mine;
- Any general partner of a partnership in which I am a limited or general partner;
- Any organization in which I serve as an officer, director, trustee, general partner, or employee, even if uncompensated; and
- Any person or organization with which I am negotiating or have an arrangement concerning prospective employment.

In the event that an actual or potential conflict of interest arises during my appointment, I will consult with an agency ethics official and take the measures necessary to resolve the conflict, such as recusal from the particular matter or divestiture of an asset.

If I have a managed account or otherwise use the services of an investment professional during my appointment, I will ensure that the account manager or investment professional obtains my prior approval on a case-by-case basis for the purchase of any assets other than cash, cash equivalents, investment funds that qualify for the regulatory exemption for diversified mutual funds and unit investment trusts at 5 C.F.R. § 2640.201(a), obligations of the United States, or municipal bonds.

I will receive a live ethics briefing from a member of the ethics office after my confirmation but not later than 7 days after my appointment pursuant to the ethics program regulation at 5 C.F.R. § 2638.305. Within 90 days of my confirmation, I will submit my

Certification of Ethics Agreement Compliance which documents my compliance with this ethics agreement.

I will not modify this ethics agreement without your approval and the approval of the U.S. Office of Government Ethics (OGE) pursuant to the ethics agreement requirements contained in the financial disclosure regulation at 5 C.F.R. § 2634.803(a)(4).

SECTION 2 – BDT Capital Partners, LLC

I resigned from my position as Chief Operating Officer at BDT Capital Partners, LLC (d/b/a BDT & MSD Partners) in July 2025. Pursuant to my separation agreement with BDT Capital Partners, LLC, I will retain health insurance coverage at my own expense until the age of 65. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the ability or willingness of BDT Capital Partners, LLC to provide this benefit to me, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1). Pursuant to the impartiality regulation at 5 C.F.R. § 2635.502, for a period of one year after my resignation from BDT Capital Partners, LLC, or for as long as I maintain this benefit, whichever is later, I will not participate personally and substantially in any particular matter involving specific parties in which I know that BDT Capital Partners, LLC is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

As soon as practicable but not later than 90 days after my confirmation, I will divest all of my interests, including, but not limited to, my equity interest, carried interest, incentive fees/allocations, and capital commitments in:

- BDT & MSD Holdings, L.P.
- BDT Capital Partners Fund 4, L.P.
- BDT Capital Partners EIV, L.P.

Such divestiture may include a gift to one or more irrevocable trusts established for the benefit of my adult children, in which neither my wife nor I have any financial interest, and/or for the benefit of one or more public charities. I will not be the trustee for any of these trusts. The trustees of these trusts will be solely responsible for their administration, including any distributions either to my children or to charity. Each trust will pay all income tax on its earnings on my behalf and will pay any taxes that result from making the tax payment on my behalf. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the ability or willingness of any trust to pay the taxes on my behalf, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1). I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the entity until I have divested it, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). I have verified that I will be able to carry out the divestitures within the timeframe described above.

I understand that I may be eligible to request a Certificate of Divestiture for qualifying assets and that a Certificate of Divestiture is effective only if obtained prior to divestiture. Regardless of whether I receive a Certificate of Divestiture, I will ensure that all divestitures

discussed in this agreement occur within the agreed upon timeframes and that all proceeds are invested in non-conflicting assets. I understand that I must submit my request for a Certificate of Divestiture to allow for adequate time for OGE to process the Certificate of Divestiture, and in order to divest assets within the agreed upon timeframe.

I (including my spouse and minor children if applicable) will not repurchase any asset I was required to divest without my consultation with my agency ethics official and the U.S. Office of Government Ethics.

SECTION 3 – 42 GENETICS LTD

Upon confirmation, I will resign from my position with 42 Genetics LTD. Because I will continue to hold vested call warrants in 42 Genetics LTD, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of 42 Genetics LTD, unless I first obtain a waiver, pursuant to 18 U.S.C. § 208(b)(1).

SECTION 4 – ENTITIES IN WHICH I HAVE AN EQUITY INTEREST

Upon confirmation, I will resign from my positions with the following entities:

- LCR Capital Partners LLC
- Long Ridge LLC
- 517 SOB LLC

I will continue to have a financial interest in these entities, but I will not provide services material to the production of income. Instead, I will receive only passive investment income. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of any of these entities, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1).

SECTION 5 – RETAINED POSITIONS

I will retain my positions with the following entities:

- 328 SWA LLC
- The Brendan P. Rogers Revocable Trust
- Family 2025 Insurance Trust
- The Rogers Family Trust

I will not at any time receive compensation for services that I perform during my Federal appointment. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of any of these entities or their underlying holdings, unless I first obtain a written waiver pursuant to 18 U.S.C. § 208(b)(1).

SECTION 6 – OTHER RESIGNATION

Upon confirmation, I will resign from my position with Mercy Health. Pursuant to the impartiality regulation at 5 C.F.R. § 2635.502, for a period of one year after my resignation, I will not participate personally and substantially in any particular matter involving specific parties in which I know Mercy Health is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

SECTION 7 – OTHER COMMITMENTS

In addition to the impartiality regulation at 5 C.F.R. § 2635.502, I understand that as an employee of the Department of Defense I will be required to comply with Section 1117 of the National Defense Authorization Act for Fiscal Year 2022. Therefore, for a period of two years after my resignation from any organization, including a trade organization, for which I served as an employee, officer, director, trustee, or general partner, I will not knowingly participate personally and substantially in any particular matter involving specific parties in which that organization is a party or represents a party to the matter, unless I am authorized to participate, pursuant to Section 1117(b).

SECTION 8 – PUBLIC POSTING

I have been advised that this ethics agreement and the Certification of Ethics Agreement Compliance will be posted publicly, consistent with the public information law at 5 U.S.C. § 552, on the website of the U.S. Office of Government Ethics with ethics agreements of other presidential nominees who file public financial disclosure reports.

Sincerely,

Brendan Rogers